

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, July 22, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, July 22, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-03146	Carmelo Lorenzo vs 3K Farming Company, Inc., et al.
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Motion to be Relieved as Counsel

The unopposed motion by attorney Roman Otkupman and the law firm of Otkupman Law Firm, A Law Corporation, to be relieved as counsel for plaintiff Carmelo Lorenzo is GRANTED.

The court will sign the order, on mandatory form MC-053, lodged with the court on June 24, 2026.

The order will be effective upon the filing of the proof of service of the signed order upon the client.

25CV-03336	Estate of Donna M. Acheson vs California State Teachers' Retirement System
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Review of Case Status Petition for Writ of Mandate

Appearance required.

25CV-05105 Edgefield Holdings LLC vs Abdul Jawad, et al.

Review of Case Status

Appearance required.

25CV-06689 Katrina Louis vs General Motors, LLC

Demurrer to Plaintiffs' First Amended Complaint

Continued on the court's own motion to August 5, 2026, at 8:15 a.m. in Courtroom 8.

Defendant's reply indicates that Plaintiff served its opposition to Defendant's demurrer to the first amended complaint on July 7, 2026. However, there is no opposition on file with the court.

If Plaintiff wants their opposition considered, Plaintiff is to file their July 7, 2026, opposition which was served on Defendant, with the court no later than July 24, 2026. If the opposition is not filed by July 24, 2026, the court will deem the demurrer unopposed.

Motion to Strike Portions of Plaintiffs' First Amended Complaint for Non-Compliance with CCP 871.24

Continued on the court's own motion to August 5, 2026, at 8:15 a.m. in Courtroom 8.

There is no indication that Plaintiff served an opposition to Defendant's motion to strike and Plaintiff is not entitled to file a late opposition.

26CV-00334 Raymond Lamerson vs Meyer Pink Law, et al.

Motion for Fees and Costs Pursuant to Code of Civil Procedure 425.16(C)

Defendant's motion for attorney's fees and costs is GRANTED.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) "The amount of an attorney fee award under the anti-SLAPP statute is computed by the trial court in accordance with the familiar 'lodestar' method." (*Cabral v. Martins* (2009) 177 Cal.App.4th 471, 491 [citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135-1136.] "Under that method, the court 'tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hours rate prevailing in the community of similar work." (*Ibid.*)

Counsel for Defendant seeks to set the lodestar at \$12,715, exclusive of an additional \$1,925 for preparation of its reply and requests an additional \$90.49 for costs.

A trial court may not rubberstamp a request for attorney's fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) Here, the total of 29.6 hours billed for the motion and 4.5 hours billed for the reply are excessive. The court finds it reasonable to reduce Attorney Graft's hours by 0.5 hours and Attorney Kim's hours by 3.4 hours. In addition, the court finds it reasonable to reduce the hours for the reply by 2.0 hours.

This results in 3.0 hours for Attorney Graft; 22.7 hours for Attorney Kim; and an additional 2.5 hours for Attorney Kim for the reply.

The court must then look at the hourly rate. The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Accordingly, following a careful review of the work required the court finds it reasonable to reduce the hourly rate for Attorney Graft to \$500 and that for Attorney Kim to \$350.

With the adjustment to the hourly rate, the lodestar is set at \$10,320. This represents 3.0 hours at \$500, 22.7 hours at \$350, with an additional 2.5 hours at \$350 for the reply.

Costs are awarded in the amount of \$90.49.

Total attorney's fees and costs are awarded in the amount of \$10,410.49.

The attorney's fees and costs are to be paid within thirty (30) days of this court's order.

26CV-03577 Louis Vasquez vs Laura Tirado

Order to Show Cause Re: Restraining Order

Appearance required.

26CV-03611 Linda Twyman vs. Crystal Villagomez

Order to Show Cause Re: Restraining Order

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 22, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-05851	Two Jinn, Inc. vs. Jimmy Luna, et al.
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Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Two Jinn, Inc. is GRANTED without leave to amend the answer. The Court takes judicial notice of its order filed on September 11, 2025, granting Plaintiff's motion for an order deeming true requests for admission and genuineness of documents that were propounded on Defendant. The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of contract and that Defendant's deemed admissions negate any denials and defenses asserted in Defendant's answer. (See *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549.)

Judgment shall be entered forthwith in favor of Plaintiff and against Defendant. Plaintiff is entitled to costs as prevailing party. The Court will sign the proposed order and proposed judgment submitted with the moving papers.

The case management conference scheduled for August 7, 2026, is vacated.

25CV-01633 TD Bank USA, N.A. vs. Sydney Hope

Case Management Conference

Appearance required.

25CV-02070 Crown Asset Management LLC vs. Luis Prado

Court Trial

Appearance required.

Defendant's Motion to Dismiss

Defendant's motion to dismiss is DENIED. As a demurrer to the complaint, Defendant's motion is untimely made. As a motion for judgment on the pleadings, Defendant's motion is denied because the complaint contains sufficient allegations that Plaintiff is the current assignee of the alleged account with standing to sue.

25CV-06204 Wells Fargo Bank, N.A. vs. Michael Blevins

Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Wells Fargo Bank, N.A., is GRANTED without leave to amend the answer. The Court takes judicial notice of its order filed on April 30, 2026, granting Plaintiff's motion for an order deeming true requests for admission that were propounded on Defendant. The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of contract and that Defendant's deemed admissions negate any denials and defenses asserted in Defendant's answer. (See *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549.)

Judgment shall be entered forthwith in favor of Plaintiff and against Defendant. The Court will sign the proposed order and proposed judgment submitted with the moving papers.

The case management conference scheduled for October 9, is vacated.

25CV-06755 Two Jinn, Inc. vs. Luis Mendoza, et al.

Motion to Deem Admitted Requests for Admission

The unopposed motion by plaintiff Two Jinn, Inc. for an order deeming admitted the genuineness of any documents and the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Luis Mendoza aka Luis Reyes is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) The Court imposes monetary

sanctions in the amount of \$310.00 against Defendant due and payable ten days from notice of entry of order. (Code Civ. Proc., § 2033.280, subd. (c).)

The Court will sign the proposed order submitted with the moving papers.

26CV-02981 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03239 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03418 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Application Calendar
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 22, 2026
1:15 p.m.

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Case No.	Title / Description
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26CV-03418	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Ex Parte Application for an Order Staying Eviction

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 22, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
24CV-05541	Oportun, Inc. vs. Jesus Torres Lopez
Court Trial	
Appearance required.	
25CV-00025	TD Bank USA N.A. vs. Rebecca Lara
Court Trial	
Appearance required.	
25CV-03194	Oportun, Inc vs. Liliana Martinez Mendoza
Court Trial	
Appearance required.	

25CV-03364

JPMorgan Chase Bank N.A. vs. Jose Oregon Maciel

Court Trial

Appearance required.

25CV-00525

Cavalry SPV I, LLC vs. Veena Kalkat

Court Trial: Short Cause

Appearance required.
